

23STCV28307 23STCV28307

County: los-angeles

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Tentative Ruling

Saint-Cyr v. City of Los Angeles,

Case no. 23STCV28307

Hearing date August 28, 2026

Defendant

Allied's Motion to Strike Punitive Damages

Plaintiff

Saint-Cyr sues defendants ABM Industry Groups, LLC, Morlin Asset Management, LP and Universal Protection Service LP dba Allied Universal Security Services ("Allied") for premises liability and negligence, alleging he was assaulted and robbed in a parking garage owned by ABM and Morlin and guarded by Allied. Allied moves to strike plaintiff's prayer for punitive damages. Plaintiff opposes.

Punitive

damages are allowable in cases of oppression, fraud or malice. Civ. Code §3294(a). Facts giving rise to a claim for punitive damages must be pleaded specifically; vague or conclusory allegations are insufficient. G.D. Searle & Co. v. Superior Court (1975) 49 Cal.App.3d 22, 29. Recklessness or negligence, even gross negligence, is insufficient to support a claim for punitive damages; carelessness or ignorance are not enough. Dawes v. Superior Court (1980) 111 Cal.App.3d 82, 88. On a motion to strike, allegations must be treated as true. E.g., Clauson v. Sup. Ct. (1998) 67 Cal.App.4th 1253, 1255.

The

complaint alleges plaintiff was assaulted and injured by two unidentified individuals who stole his vehicle. Compl., para. 13. Allied argues plaintiff failed to allege facts showing oppression, fraud or malice by Allied. Allied argues plaintiff failed to allege its ratification of the assault by a managing agent. See Civ. Code §3294(b). Allied argues the claims sound solely in negligence.

Plaintiff

argues Allied acted with “malfeasance, nonfeasance, wanton and reckless misconduct, and conscious disregard, and said Defendants directly, legally, and proximately caused the severe injuries and damages asserted in this Complaint by such wrongful conduct.” Compl., para. 17. Plaintiff argues the premises in a high-crime area, and Allied understaffed the premises, despite knowing this fact. Id. at para. 39; see also Decl. McElfish, exh. B, 39:9-40:8, 43:25-44:1, 44:11-15. Plaintiff argues the alleged failure to provide greater security constitutes malice via willful disregard for plaintiff’s safety.

Plaintiff further argues he need not identify a specific managing agent for purposes of ratification, citing *White v. Ultramar, Inc.* (1999) 21 Cal.4th 563 for the premise that officers, directors, or managing agents responsible for ratification of the wrongful acts of the entity’s employee may not be readily ascertainable at the pleading stage.

Plaintiff

alleges unidentified third parties attacked him. Plaintiff does not allege that Allied employees participated in the attack, nor that Allied had knowledge of any specific threat to plaintiff. Plaintiff’s allegations sound in negligence; plaintiff failed to show Allied engaged in vile, base or contemptible conduct or otherwise acted with malice or reckless disregard. General knowledge of criminal activity in an area is not equivalent to knowledge that a particular violent assault was probable, nor does it establish a deliberate decision by Allied to disregard a risk to plaintiff.

Further,

plaintiff failed to establish ratification by an Allied managing agent. *White*, supra, recognizes that the identity of a managing agent may not be clear at the initial pleading stage; it does not abrogate the statutory requirement for plaintiff to identify an agent. Plaintiff offers no facts in support of his argument that the decision to understaff the subject premises was made at the

managerial level. This is insufficient to sustain a claim for punitive damages.

Plaintiff

requests leave to amend, arguing liberal amendments are permitted in California. Although leave to amend is liberally granted, it is not required where the defect is incapable of being cured by amendment. *Heckendorn v. City of San Marino* (1986) 42 Cal.3d 481, 486. Plaintiff fails to identify what, if any, facts exist that could demonstrate malice, fraud or oppression such that punitive damages would be awardable. As plaintiff's claims sound in negligence, and as even gross negligence is insufficient to allow an award of punitive damages, leave to amend would be futile.

GRANTED; Complaint,

Page 13, prayer for judgment, No. 5: "For punitive damages" is struck. No leave to amend at this time; should discovery reveal facts that might justify an award of punitive damages, plaintiff may make a motion for leave to amend to reallege such.